		unreasonable and should be reduced to 1.0 hours (a total reduction of $585.00); and · 2.2 hours by Mr. Acosta on 6/21/25 for reviewing Defendant's initial disclosure document production is excessive and unreasonable and should be reduced to 1.5 hours (a total reduction of $315.00). The above items equal a total of $1,320.00 in reductions from the requested lodestar. Based on the Court's experience and knowledge of the prevailing rates in the Orange County area for similar services, the Court finds the remaining number of hours and counsel's hourly rates to be reasonable. In light of the above, the Motion for Attorney Fees is GRANTED in the total amount of $18,452.50 in fees and $972.01 in costs. Plaintiff to give notice
111	**Bian vs. Latreill** **24-01390510**	Motion for Summary Judgment and/or Adjudication Defendant Rene Francis ("Ray") LaTreill ("LaTreill") moves for summary judgment or, in the alternative, adjudication of issues as to Plaintiff Wenqiang ("Wayne") Bian's ("Bian") First Amended Complaint ("FAC"). For the reasons set forth below, the motion is DENIED. A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (CCP §437c(p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (FPI Development v. Nakashima (1991) 231 Cal.App.3d 367, 381-382 (pleadings serve as the outer measure of materiality in a summary judgment motion)). Once a defendant meets its prima facie

showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.)

The FAC pleads causes of action for (1) equitable indemnity; (2) implied contractual indemnity; and (3) breach of fiduciary duty against LaTreill. LaTreill contends that all three causes of action are barred by issue preclusion.

In May 2019, Tony Khodadad and Cashera Plaza, LLC ("Cashera") (collectively, the "Khodadad Plaintiffs") sued Bian, Michelle Liao, LaTreill, and others in Kings County for fraud, wrongful foreclosure, and other claims (the "Khodadad Action"). (UF 1.) A bench trial was first held on Cashera's two equitable claims to set aside sale and cancel instruments. (UF 2.) The court issued a statement of decision following the first phase of trial. (UF 3.)

The court found the Khodadad action arose from a loan transaction with Cashera Plaza LLC as the borrower and with Bian and Liao, through the Bian Liao Living Trust ("BLLT"), as the lender. (UF 4.) Per the Statement of Decision, the Khodadad plaintiffs believed they were obtaining a construction loan to develop real property for the construction of a car wash and auto repair shop (the "Hanford Property"). (UF 5.) Undisclosed to them by Bian or the other defendants was that the loan proceeds would be used for a gold venture. (UF 6.) The court found that Bian and other defendants knew the loan proceeds would not be advanced for construction of the project, but rather for a gold venture in which Bian expected to be a partner. (UF 7.)

Corporate Asset Science LLC ("CAS") was designated as the fund control agent, and it disbursed only $140,000 of the $1,130,000.00 in loan proceeds to Cashera. (UF 9.) The other loan proceeds were wired to

		Ghana, consistent with the gold venture plan and contrary to the Khodadad plaintiffs' understanding that the funds would be disbursed only for construction on the Hanford property. (UF 10.) When the Khodadad plaintiffs failed to repay the loan, Bian and Liao, through their trust, foreclosed. (UF 11.) The court found that "Defendants," which included Bian and LaTreill, knew Cashera received just $140,000 of the $1.13 million in loan funds and knew that CAS's failure to disburse the funds to the plaintiffs had impeded their construction project and caused financial harm. The court further found the "Defendants," knowing all this, nevertheless demanded repayment of the entire loan plus interest, recorded a Notice of Default when payment was not made, and proceeded with foreclosure as though the lender had fully performed. (UF 13 and Deft's Response to UF 13.) The court found that Defendants engaged in fraud when entering the underlying loan. (RJN, Exh. C at 25:17-18.) Although the court was only deciding the equitable claims to set aside the sale and cancel instruments in this first phase of the trial, the Court noted that its findings were binding on the upcoming jury trial on Plaintiffs' legal claims, and that numerous elements of those claims were established by its findings. (RJN, Exh. C at 29:13-23.) The Court concluded that "[f]or the fraud claim, the elements of a misrepresentation, scienter, intent to induce reliance, justifiable reliance, and resulting damage are established, as is Plaintiffs' entitlement to punitive damages based on the Court's finding that Defendants acted with malice in originating the loan. The jury need only determine the amount of compensatory and punitive damages." (RJN, Exh. C at 30:2-5.) LaTreill contends that, because the Khodadad court found that Bian was an intentional tortfeasor, he is barred from seeking equitable indemnity, implied contractual indemnity, or damages for breach of

		fiduciary duty. As authority for this proposition, LaTreill relies primarily on a footnote found in Fisher v. Fisher (2026) 118 Cal. App. 5th 899, which cites to B.B. v. County of Los Angeles (2020) 10 Cal. 5th 1. (Fisher v. Fisher (2026) 118 Cal. App. 5th 899, fn. 5 (citing B.B. v. County of Los Angeles (2020) 10 Cal. 5th 1, 24).) However, the issue addressed in B.B. was whether an intentional tortfeasor was entitled to a reduction or apportionment of damages pursuant to Civil Code §1431.2 (adopted through "Proposition 51"). In the Fisher case, the court merely cited B.B. in a footnote, in dicta, to explain why the trial court did not ask the jury to apportion fault for damages for intentional infliction of emotional distress. Thus, while Fisher and B.B. state in passing that comparative fault does not apply to intentional tortfeasors, the issue was not squarely before either court. In contrast to the above, in Baird v. Jones, the appellate court squarely confronted the issue of whether comparative equitable indemnity applies to concurrent intentional tortfeasors—a question that the Supreme Court has yet to consider. (Baird v. Jones (1993) 21 Cal.App.4th 684.) After analyzing various Supreme Court decisions, the Baird court ultimately held that "[c]onsistent with the Supreme Court's view, we conclude comparative fault principles should be applied to intentional torts, at least to the extent that comparative equitable indemnification can be applied between concurrent intentional tortfeasors." (Id. at 690.) The Baird court reasoned "[i]f it is equitable and just to allocate loss between concurrent negligent tortfeasors, a negligent tortfeasor and an intentional tortfeasor, or a negligent tortfeasor and a strictly liable defendant, then there is little logic in prohibiting an intentional tortfeasor from forcing another intentional tortfeasor to bear his or her share of liability. (Id. at 692.) More recently, the Ninth Circuit, in applying California law, noted that "there is no categorical bar forbidding

		one intentional tortfeasor from seeking equitable indemnity against another; it is a case-specific inquiry." (U.S. Securities & Exchange Commission v. Peterson (9th Cir. 2025) 129 F.4th 599, 611, cert. denied sub nom. Peterson v. Freitag (2026) 146 S.Ct. 1462, and cert. denied sub nom. Ovation Fund Management II, LLC v. Nos-saman LLP (2026) 146 S.Ct. 1499 (citing Baird v. Jones, 21 Cal.App.4th 684 (1993); Henry v. Lehman Com. Paper (In re First All. Mortg. Co.), 471 F.3d 977, 1005 (9th Cir. 2006) (recognizing that California law allows "for comparative equitable indemnification among joint intentional tortfeasors").) Thus, contrary to LaTreill's assertions, an intentional tortfeasor is not categorically barred from seeking indemnification from another intentional tortfeasor. Citing Code of Civil Procedure section 875(d), LaTreill next contends that contribution is barred for intentional tortfeasors by statute. However, both parties acknowledge that Section 875(d) is not applicable here, as subsection (a) states, "Where a money judgment has been rendered jointly against two or more defendants in a tort action, there shall be a right of contribution among them as hereinafter provided." (Code Civ. Proc. § 875(a).) Subsection (d) then provides the exception that "There shall be no right of contribution in favor of any tortfeasor who has intentionally injured the injured person." (Code Civ. Proc. § 875(a).) Section 875 does not apply to this case because there was no judgment rendered against LaTreill, and thus there is no jointly rendered money judgment. (AUF 25.) LaTreill finally contends that, to the extent the second cause of action for implied contractual indemnity and the third cause of action for breach of fiduciary duty are predicated on an oral agreement, they are both barred because the underlying oral agreement was unlawful and therefore unenforceable. The FAC frames the agreement as follows:

		In or around late 2015, Bian and Latreill entered into a verbal agreement under which Latreill, acting as a broker for Bian, arranged a loan from Bian to Cashera to provide financing for an investment in a program to mint commemorative gold coins secured by a lien against the Cashera Property, arranged a fund control mechanism for the loan, and handled the foreclosure process when Cashera failed to pay off and satisfy the loan by the maturity date and no extension agreement was procured. In consideration for Latreill's services, Latreill was to receive a share of the profits derived from the sale of the mint commemorative gold coins (on information and belief, a one-third share), along with cash compensation. Latreill had a duty to exercise reasonable care and diligence in providing such services to Bian under the parties' verbal agreement and understanding. (FAC ¶ 32.) Code of Civil Procedure section 1668 provides that "[a]ll contracts which have for their object, directly or indirectly, to exempt any one from responsibility for his own fraud, or willful injury to the person or property of another, or violation of law, whether willful or negligent, are against the policy of the law." In Homami v. Iranzadi, cited by LaTreill, the court explained that "even though a written contract is legal on its face, evidence may be introduced to establish its illegal character . . . And if the substance of the transaction is illegal, it matters not when or how the illegality is raised in the course of the lawsuit. Whether the evidence comes from one side or the other, the disclosure is fatal to the case . . . As the cases have repeatedly pointed out, 'the test ... is whether the plaintiff can establish his case otherwise than through the medium of an illegal transaction to which he himself is a party.'" (Homami v. Iranzadi (1989) 211 Cal.App.3d 1104, 1112, modified (June 27, 1989).)

Here, the agreement on its face does not appear to have an illegal object. LaTreill contends, however, that the Khodadad court's findings that the loan was ultimately fraudulently brokered are tantamount to a finding that the alleged oral agreement did not have a lawful object. While the Court found Bian "to be a highly educated, sophisticated individual who knew and understood more than he admitted," the Court made no specific findings that Bian was aware that the Khodadad plaintiffs believed they were obtaining a construction loan and not investing in a gold venture. (UF 33, 25.) Rather, throughout the statement of decision, it appears only that Bian was aware the loan was for a gold venture—but there are no findings that Bian was actually aware that the Khodadad plaintiffs believed the transaction was a construction loan.

The Khodadad court's finding that Bian committed fraud in connection with the loan instead relies heavily on its finding that other parties, such as LaTreill, Abernethy, CAS, and Banuelos were acting as agents for Bian for purposes of the loan. (RJN Exh. C at 13:25-14:12; 17:23-18:2.) The Khodadad court expressly stated that part of its findings as to Bian were based on a theory of vicarious liability and imputed knowledge. (RJN Exh. C at 19:17-21:2.)

Accordingly, at this juncture, LaTreill has not met his burden of demonstrating that the oral agreement alleged in the FAC was for a purpose that violates Section 1668. The agreement's purpose is not violative on its face, and the Khodadad court's statement of decision does not include any findings that indicate that Bian's object in entering into the agreement was for a purpose prohibited by section 1668.

LaTreill's requests for judicial notice are GRANTED pursuant to Evid. Code §452(d).

		The Court declines to rule on LaTreill's objections as immaterial to the disposition of this motion. (Code Civ. Proc. § 437c(q)). Moving party to give notice.
112	**O'Mary vs. City of Tustin** **24-01442068**	Motion for Summary Judgment and/or Adjudication Defendant, City of Tustin ("Tustin"), moves for an order granting summary judgment in favor of the Tustin as to Plaintiff, Elisa Jill O'Mary's Complaint. The Motion for Summary Judgment is DENIED. Tustin contends that the uplift in the sidewalk in front of the property located at 16661 McFadden Avenue ("Subject Sidewalk") which was raised at a range between 0.81 inches to 1.15 inches is a trivial defect as a matter of law such that Plaintiff cannot show that Tustin had a duty to remedy the uplift in the Subject Sidewalk. Tustin also contends that there was nothing in the Subject Sidewalk that aggravated the uplift or otherwise made it unreasonably dangerous to a person using due care, and that Plaintiff has not identified or pleaded any aggravating conditions of the Subject Sidewalk, and may not attempt to create issues that were not alleged in the Complaint. Government Code section 835 ". . . 'expressly authorizes two different forms of dangerous conditions liability: an act or omission by a government actor that created the dangerous condition (§ 835, subd. (a)); or, alternatively, failure "to protect against" dangerous conditions of which the entity had notice (id., subd. (b)).' [Citation.]" (Kabat v. Department of Transportation (2024) 107 Cal. App. 5th 651, 660.) "The phrase 'protect against' includes 'warning of a dangerous condition.' § 830, subd. (b).)" (Ibid.) "To establish liability under section 835, a plaintiff must show: '(1) "that the property was in a dangerous condition at the time of the injury"; (2) "that the injury